

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In The Matter Of

**CERTAIN SECONDARY
CYLINDRICAL BATTERIES,
COMPONENTS THEREOF, AND
PRODUCTS CONTAINING THE SAME**

Docket No. 337-3926

**EVE ENERGY PROPOSED RESPONDENTS'¹
PUBLIC INTEREST STATEMENT**

¹ EVE Energy Co., Ltd., EVE Energy North America Corporation, and EVE Energy US Holding LLC (collectively, “EVE Energy”).

Proposed Respondents EVE Energy Co., Ltd., EVE Energy North America Corporation, and EVE Energy US Holding LLC (collectively, “EVE Energy”) respectfully submit this response to address the important public interest concerns raised by the Complaint filed by Complainants LG Energy Solution Ltd. and LG Energy Solution Arizona, Inc. (collectively, “Complainants”). Because the Complaint seeks a remedy inconsistent with the public interest, EVE Energy respectfully requests that, if the Commission were to institute an investigation, it should also delegate public interest fact-finding pursuant to Commission Rule 210.10(b)(2).

EVE Energy is a leading manufacturer of batteries used across a variety of sectors in the United States and global economy. Over 25 years of continuous innovation and high-quality development, EVE Energy has evolved from a lithium battery manufacturer into a global-leading “innovative full-scenario lithium battery platform company” that is committed to promoting global green energy transformation and intelligent upgrading through diversified, high-quality lithium battery technologies and products.² In 2023, EVE Energy North America Corporation announced a new research & development facility for lithium-ion batteries in Lewis Center, Ohio,³ and EVE Energy has continued to invest in and prioritize American investment and sales.

Given the importance of battery power in nearly every sector of the American economy and in Americans’ daily lives, and given the value of a well-developed factual record regarding the potential impacts of exclusion to the American public, the Commission should delegate public interest to the ALJ.

² EVE Energy 2025 Annual Report, at 11, https://file.finance.sina.com.cn/211.154.219.97:9494/MRGG/CNSESZ_STOCK/2026/2026-3/2026-03-28/12033427.PDF.

³ Liz Carey, EVE Energy North America chooses Lewis Center, Ohio for lithium-ion battery R&D facility, *Transportation Today News* (Jan. 4, 2023), <https://transportationtodaynews.com/news/29274-eve-energy-north-america-chooses-lewis-center-ohio-for-lithium-ion-battery-rd-facility/>.

I. THE ARTICLES POTENTIALLY SUBJECT TO EXCLUSION ARE RECHARGEABLE BATTERIES AND DOWNSTREAM PRODUCTS USED ACROSS VARIOUS PUBLIC HEALTH AND WELFARE SECTORS OF THE U.S. ECONOMY

As Complainants admit, the scope of Accused Products that would be at issue if the Commission institutes an Investigation includes more than just batteries: “The Accused Products are secondary (rechargeable) cylindrical lithium-ion battery cells (‘cylindrical cells’)—including the EVE 18650- and 21700-format cells identified in the Complaint (e.g., the 20P, 29V, 40PL, 50E, and 50PL)—their components, *and the downstream products that contain them.*”⁴ But while Complainants contend that these “downstream products . . . are *ordinary* consumer and commercial goods—not medical devices, . . . critical infrastructure, or articles necessary to satisfy any important public health or welfare need,”⁵ Complainants’ uncited assertion ignores that the Accused Products *are used* in critical public health and welfare sectors like medical devices in the United States.⁶ Medical products such as patient monitors, ventilators, oxygen concentrators, blood pressure monitors, and other portable testing equipment can use secondary cylindrical batteries, including those such as the EVE 29V battery identified in the Complaint. Given the applicability of at least some accused batteries in medical and other critical devices in the United States, it is appropriate for evidence to be taken on the effect to the public interest should Complainants obtain the remedial orders they seek.⁷

⁴ Complainants’ Initial Statement on the Public Interest, EDIS Doc. No. 2588865, at 2 (emphasis added) (hereinafter “CPIS”).

⁵ *Id.*

⁶ *See, e.g.,* <https://www.evebatteryusa.com/copy-of-product-applications-1> (listing exemplary uses of the accused 18650/21700 Cells, which include “Medical Device[s]”).

⁷ Complainants’ argument that “[e]xcluding infringing articles supplied by a designated Chinese military company is fully consistent with the public interest and U.S. policy” misrepresents the CMC list and the public interest inquiry. CPIS at 3. Though EVE Energy disputes it should be included on the CMC list, it remains permitted to sell its products, including the Accused Products, into the U.S. market. Further, this argument is irrelevant to the ITC’s public interest inquiry, which

II. COMPLAINANTS' ALLEGATIONS DO NOT SHOW THAT THE ACCUSED PRODUCTS CAN BE REPLACED IN A COMMERCIALY REASONABLE TIME

Complainants argue that ample capacity⁸ exists between Complainants and a “broad base of third-party suppliers” to supply alternative rechargeable batteries to the U.S. market if the Accused Products are excluded.⁹ Putting aside both the lack of any quantitative evidence from Complainants to support this assertion and the breadth of uses for these products, there are at least three major flaws in Complainants’ argument.

First, Complainants’ reliance on their own alleged capacity to replace the articles potentially subject to exclusion relies on the fact Complainants are “*investing* . . . in a battery-manufacturing complex in Queen Creek, Arizona . . . [that is] *designed* for approximately 36 gigawatt-hours of annual production capacity,” although that “plant is [only] *substantially* complete, with commercial production *expected to begin* in late 2026.”¹⁰ Complainants do not allege that they could replace the Accused Products now—the entirety of Complainants’ alleged production capacity is based on their hopes for future capacity with no guarantee that this capacity will come to fruition. Complainants acknowledged to their investors that “[d]emand for mobile batteries for new applications, such as electric tools and other electrical devices, as well as traditional IT devices, is increasing recently,”¹¹ not to mention the multiple other uses for

instead relates to how U.S. public health and welfare would be affected if Complainants’ remedial orders were entered.

⁸ “According to market research, EVE Energy held a 7.9% share of global power tool battery shipments in 2020, ranking third, and is known to have significant cylindrical battery sales in the U.S. market.” *LG Energy Solution Sues China’s EVE Energy in US Over Cylindrical Battery Patents, Broadening Pressure Campaign*, BIGGO FINANCE (July 23, 2026), <https://finance.biggo.com/news/f33c9a00-32a7-44da-bec4-ca3906391984> (hereinafter “BigGo”).

⁹ CPIS, at 4.

¹⁰ *Id.* at 4–5 (emphasis added); see also Compl. ¶ 123.

¹¹ LGES Interim Condensed Consolidated Financial Statements (Mar. 31, 2026), [https://www.lgensol.com/upload/file/download/261Q_LGES_Audit_Report_CONFS_en\[0\].pdf](https://www.lgensol.com/upload/file/download/261Q_LGES_Audit_Report_CONFS_en[0].pdf), at 6 (hereinafter “LGES CFS”).

secondary cylindrical batteries not addressed in their public interest statement. There is no guarantee that Complainants' theoretical future capacity will be sufficient to handle this additional volume—much less do so in a timely manner—if an exclusion order is entered.

Second, Complainants' argument that third-party suppliers will replace the Accused Products ignores that Complainants have made clear this lawsuit is part of a campaign to use lawsuits as part of a battery licensing program against a multitude of third parties. Complainants' press release through the battery licensing program it founded made this clear—“[t]he new [LGES] ITC case is a *continuation of active enforcement efforts within Tulip's battery licensing program*, which recently resulted in a patent license agreement with Sunwoda Electronic that resolved pending Tulip actions in Germany and Korea.”¹² Complainants do not allege that the third parties identified in their public interest statement sell non-infringing products, are licensed, or that they will not be the next target in this enforcement program. Given this acknowledged litigation campaign, Complainants' argument that other battery manufacturers will be able to replace EVE Energy's products in the event of an exclusion order requires further analysis and development of the factual record.

Third, Complainants' argument utterly ignores that it takes time for users of secondary

¹² *Tulip Battery Licensing Program Brings US ITC Action Against EVE Energy*, TULIP (July 22, 2026), <https://tulipinnovation.com/elementor-1031/> (emphasis added) (hereinafter “Tulip PR”). “Tulip Innovation” is a Hungary-based patent licensing partnership between LGES and Panasonic Energy. See <https://tulipinnovation.com/>; see also BigGo (“LG Energy Solution appears to be leveraging consecutive victories against Chinese companies in Europe to *intensify its offensive in the U.S. market*. . . . LG Energy Solution has indicated it will continue to take strict action against unauthorized patent use in global markets, suggesting the patent offensive against Chinese battery companies is *likely to intensify further*.” (emphasis added)). LGES is “a founding member of Tulip battery licensing program,” and the Chairman of the Tulip group also added “that ‘the *prompt filing of new enforcement proceedings* demonstrates the commitment of the Tulip program to addressing the proliferation of unlicensed lithium-ion battery products *across various industries*.’” Tulip PR (emphasis added).

cylindrical battery to qualify replacement secondary cylindrical batteries. This qualification time, in addition to the time required for replacement batteries to be made, must be considered in understanding when replacement products could be commercially available.

To be clear, EVE Energy is unaware of directly competitive articles that Complainants, their licensees, or third parties sell that could directly and immediately replace the subject articles if they were to be excluded. Notably, Complainants' Public Interest Statement lists no examples of their own or competitor products that directly map on to *any* of the Accused Products, much less any entity with the excess capacity to replace EVE Energy's products. Evidence should be received by the ALJ to see if any suitable replacements exist.

III. THE IMPACT ON CONSUMERS OF EXCLUSION OF THE ACCUSED PRODUCTS SUPPORTS DELEGATING PUBLIC INTEREST

EVE Energy's Accused Products and the downstream products incorporating the same play an important role in the overall wellbeing of the American public, and it is far from certain whether any entity could have the capacity to replace these products should any become subject to the Commission's remedial orders. This raises concerns on the potential impact to U.S. consumers, particularly where it is known that the Accused Products are used in multiple types of medical and other devices supporting public health and welfare, and where there is no clarity that the products that would be subject to an exclusion order could be promptly replaced. Given these issues, it is appropriate for public interest to be delegated and a record to be developed regarding how Complainants' proposed remedial orders would affect consumers. Therefore, EVE Energy respectfully requests that, if the Commission institutes the requested investigation, it instructs the presiding ALJ to take evidence with respect to the public interest and provide the Commission with findings of fact and a recommended determination on the public interest factors.

Date: August 4, 2026

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I, Lauren McDuffie, hereby certify that on August 4, 2026, copies of the foregoing document were filed and served upon the following parties as indicated:

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On Behalf of Complainants LG Energy Solution Ltd. and LG Energy Solution Arizona, Inc.

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/s/ Lauren McDuffie
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